

PERFORMANCE WORK STATEMENT (PWS)

TRINITY REGIONAL LAKES VEGETATION REMOVAL SERVICES

1. **GENERAL:** This is a non-personal services contract providing all management, tools, equipment, materials, chemicals, and labor required to achieve the desired results described herein to perform tree clearing, dead or storm damage tree removal, trimming, stump grinding, reseeding, and boundary maintenance services described herein. The Government shall not exercise any supervision or control over the Contractor or contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor, who, in turn is responsible to the Government.

1.1 Description of Services/Introduction: The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform tree clearing, tree removal, trimming, dead or storm damaged tree removal, stump grinding, boundary fence line clearing, reseeding, and boundary maintenance services described herein, at the Trinity Regional Lakes of North Central Texas. These services shall be utilized at Lavon, Lewisville, Ray Roberts, Grapevine, Benbrook, Joe Pool, and Bardwell Lakes. All service results shall be as defined in this Performance Work Statement (PWS). The Contractor shall be required to perform within the standards of this contract.

1.2 Scope: Provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform tree clearing, tree removal, trimming, dead or storm damaged tree removal, stump grinding, boundary fence line and area clearing, reseeding, and boundary maintenance to achieve the desired results. The objective of these services shall be (1) boundary fence clearing to improve visibility of the property line, (2) clear trees in support of prairie restoration and dam maintenance, (3) removal of hazardous limbs, trees, and debris in recreational or public lands, (4) reseeding, and (5) boundary maintenance, as described herein. Unless specified that trees may be ground and mulch left on site, the Contractor shall securely transport and dispose of all debris, in an approved area on Government property as determined by the Contracting Officer (KO) or the Contracting Officer's Representative (COR). If desired, the Contractor may be allowed to retain these materials but, is responsible for the proper disposal or use of the materials and at no time will be allowed to return any portion of the materials or by-product back to Government Property.

1.3 Period of Performance: The Base Year will be 1 September 2025 – 31 August 2026, plus two one-year options (1 September 2026 – 31 August 2027 and 1 September 2027 – 31 August 2028 respectively). All work shall be executed by the issuance of specific Task Orders. Each issued Task Order will contain specific details of work to be performed and the individual period of performance of the Task Order as designated by the KO.

1.4 General Information

1.4.1 Quality Control: The Contractor shall develop and maintain an effective quality control program to ensure services are performed in accordance with this PWS. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services in the form of a Quality Control Plan (QCP). The QCP is the method the Contractor uses to ensure all work complies with the requirements of the contract. The QCP is to be delivered within 30 calendar days after contract award or with the Contractor's proposal if it is an evaluation factor. Two (2) copies of a comprehensive written QCP shall be submitted for approval by the KO or COR. Any proposed changes to an approved QCP shall be submitted in writing to the KO or COR for review and approval.

1.4.2 Quality Assurance: The Government will evaluate the Contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government must do to ensure the Contractor's quality control program is effective and is performing all work in accordance with the Performance Work Standards in Technical Exhibit 1, "Performance Requirements Summary" (PRS). The QASP defines how the performance standards will be applied, method of surveillance, and the performance threshold. Inspections will be performed by the COR or his designated Quality Assurance Representative.

1.4.3 Government Holidays: The Contractor shall not perform services on Saturdays, Sundays, or Federal holidays, unless a written request is submitted and approved by the KO or COR as authorized due to Quality Assurance and

safety oversight requirements. Any request must be submitted a minimum of forty-eight hours in advance of the proposed change. For informational purposes only, observed federal holidays are as follows:

New Year's Day	Labor Day
Martin Luther King Jr. Birthday	Columbus Day
President's Day	Veteran's Day
Memorial Day	Thanksgiving Day
Juneteenth	Christmas Day
Independence Day	

1.4.4 Hours of Operation: Lake Office hours are 8:00 am to 4:30 pm, Monday through Friday. The Contractor will be notified of any exceptions or lake office specific hours of operations. Contractor work hours shall accomplish work during normal business hours unless specifically approved in advance by the COR.

1.4.5 Place of Performance: The work to be performed under this contract will include: Lavon Lake, Lewisville Lake, Ray Roberts Lake, Grapevine Lake, Benbrook Lake, Joe Pool Lake, and Bardwell Lake, Texas. These facilities are located as follows:

- a. Lavon Lake Project - Located entirely in Collin County. The Project Headquarters is located at 3375 Skyview Drive, Wylie, Texas.
- b. Lewisville Lake Project - Located entirely in Denton County. The Project Headquarters is located at 1801 N. Mill Street, Lewisville, Texas.
- c. Ray Roberts Lake Project - Located in Denton, Grayson, and Cooke Counties. The Project Headquarters is managed by the Lewisville Project Office located at 1801 N. Mill Street, Lewisville, Texas.
- d. Grapevine Lake Project – Located in Tarrant and Denton Counties. The Project Headquarters is located at 110 Fairway Drive, Grapevine, Texas.
- e. Benbrook Lake Project – Located entirely in Tarrant County. The Project Headquarters is located at 7001 Lakeside Drive, Fort Worth, Texas.
- f. Joe Pool Lake Project – Located in Tarrant, Dallas, and Ellis Counties. The Project Headquarters is located at 6399 FM 1382, Dallas, Texas.
- g. Bardwell Lake Project – Located entirely in Ellis County. The Project Headquarters is located at 4000 Observation Drive, Ennis, Texas.

1.4.6 Type of Contract: The Government will award an IDIQ (Indefinite Delivery/Indefinite Quantity) contract. The Contractor shall perform all services specified herein on an as-ordered basis by the Government through the issuance of Task Orders. Task Orders will indicate the line-item quantity, location, and period of performance for each Task Order issued. All payments shall be made based upon line-item pricing for the contract base and any option years, as submitted by the Contractor and accepted at contract award.

1.4.7 Security Requirements:

1.4.7.1 The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor

shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as “RAMs”), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures—this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

1.4.7.2 Access and General Protection/Security Policy and Procedures: All contract personnel requiring physical access to a federal installation or facility shall comply with the access control procedures of that location. Contract personnel requiring unescorted access to meet contract performance requirements on a DoD installation in the US shall be vetted by the installation/facility Provost Marshal/Directorate of Emergency Services/Security Office using the National Crime Information Center-Interstate Identification Index (commonly referred to as “NCIC-III”) and Terrorist Screening Database (commonly referred to as “TSDB”). Contract personnel shall comply with all personal identity verification requirements specified in installation/facility policies and procedures. Contract personnel who do not meet requirements for unescorted access to USACE facilities shall coordinate escorted access with the Government representative, as needed. Contract personnel who receive keys, access cards, or lock combinations that provide access to government-owned property shall comply with key and lock control procedures of the RA.

1.4.7.3 Suspicious Activity Reporting Training & Antiterrorism (AT) Level I Training: All contract personnel shall receive initial and annual refresher training from the RA representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.

All contract personnel requiring routine access to Army installations, facilities, and controlled access areas, or requiring network access shall complete initial and annual refresher AT Level I awareness training. Online AT Level I awareness training is available at <https://jko.jten.mil/> (website subject to change).

1.4.7.4 Escort Requirements: In accordance with applicable regulations, all contract personnel who do not possess the appropriate security clearance or access privileges will be escorted in areas where they may be exposed to classified information or operations, sensitive information or activities, or restricted areas.

1.4.7.5 Security Pre-screening: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (<https://www.e-verify.gov/>) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of verified/eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.

1.4.7.6 Physical Security: The Contractor shall be responsible for safeguarding all Government equipment, information and property provided for Contractor use. At the close of each work period, Government facilities, equipment, and materials shall be secured.

1.4.7.7 Key Control: The Contractor shall establish and implement methods of making sure all keys/key cards issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. All Government keys and or key cards will be issued and controlled in accordance with 190-51.

NOTE: All references to keys include key cards. No keys issued to the Contractor by the Government shall be duplicated. The Contractor shall develop procedures regarding key control and included in the Quality Control Plan. Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The Contractor shall immediately report any occurrences of lost or duplicate keys/key cards to the Contracting Officer.

1.4.7.7.1. The Contractor shall prohibit the use of Government issued keys/key cards by any persons other than the Contractor's employees. The Contractor shall prohibit the opening of locked areas by Contractor employees to permit entrance of persons other than Contractor employees engaged in the specific performance of assigned work in those areas, or personnel authorized entrance by the KO or COR.

1.4.7.7.2. The Contractor shall establish and implement methods of ensuring that all lock combinations are not revealed to unauthorized persons. The Contractor shall ensure that lock combinations are changed when personnel having access to the combinations no longer have a need to know such combinations. These procedures shall be included in the Contractor's QCP.

1.4.7.8 Contractor's Employee Conduct: The Contractor shall be responsible for ensuring employees strictly comply with all Federal, State, and Municipal laws. Any illegal or criminal activity shall result in the removal of the employee/employees and or may result in the termination of the contract. The Contracting Officer or Contracting Officer's Representative may require the Contractor to immediately remove from work site any employee of the Contractor or Sub-contractor, who, in the opinion of the KO or COR endangers persons or property, or whose physical or mental conditions are such that it would impair the employee's ability to satisfactorily perform work. Notification to the Contractor shall be promptly made in writing if time and circumstances permit. Otherwise, notification shall be verbal or by telephone and shall be confirmed in writing as soon as possible. No such removal, however, shall reduce the obligation to perform all work required under the contract and immediate replacement shall be made as required. This removal shall not be made the basis of any claim for compensation or damages against the United States or any of its employees, officers, or agents. Employee attire shall meet the requirements of the EM 385-1-1, "Safety and Health Requirements Manual".

1.4.7.9 Identification of Contractor Employees: The Contractor shall provide each of its employees who will be involved in the performance of the contract, on a Government facility, with a uniform shirt clearly displaying the company's name and logo screen printed on the left breast area or on the back. Additionally, the Contractor shall provide photo identification badges to all Contractor employees. Employees shall wear, in clear view or have photo badges on their person as they perform duties to execute the work items under this contract. The Contracting Officer or Contracting Officer's Representative shall approve the uniform shirt and photo identification badges before the commencement of contract performance. It is the Contractor's responsibility to ensure that all Contractor personnel wear the uniform shirt at all times when performing work under this contract at a Government facility. Contractor shall allow only persons directly involved with accomplishment of the Contractor's operations in facilities serviced by this contract (i.e., no friends, guests, children, or pets). Unless otherwise specified in the contract, each Contractor employee shall wear the uniform shirt except when safety or health reasons prohibit such usage.

1.4.8 Sustainability:

1.4.8.1 The Contractor must meet the recycled content requirements set forth by the EPA for specified products. The following web site contains a list of EPA designated products:
<http://www.ssc.nasa.gov/environmental/pdf/AffirPro.pdf>. Contractor will ensure compliance with the EPA guidelines under the categories of: non-paper office products, paper and paper products, and vehicular products.

1.4.8.2 The Contractor must meet the Bio Preferred Program requirements set forth by USDA. The following is a link to USDA-designated product categories:
<https://www.biopreferred.gov/BioPreferred/faces/pages/ProductCategories.xhtml>. Contractor will ensure compliance under the categories of: grounds maintenance, office supplies, operations and maintenance, and vehicles and equipment maintenance.

1.4.9 Safety: The Contractor shall develop and execute an effective safety program to ensure all required services are performed safely. The Contractor shall develop and implement procedures to identify, minimize and prevent safety risks in the form of a Safety Plan. The Contractor's Safety Plan is the means by which he ensures safety of personnel in the work place. The Safety Plan and initial Activity Hazard Analysis (AHA) is to be delivered within 15 calendar days from contract award. Two (2) copies of a comprehensive written Safety Plan shall be submitted for approval by the KO or COR. Any proposed changes to an approved plan shall be submitted, in writing, to the KO or COR for review and approval. The Contractor shall exercise all applicable safety rules in accordance with the Occupational Safety and Health Administration (OSHA) and all pertinent provisions of the U.S. Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1, most current version. A web based version of this manual may be viewed at: <http://publications.usace.army.mil/publications/eng-manuals>. OSHA standards are subject to change and such changes may affect the Contractor in their performance during the contract period and shall be at no additional cost to the Government.

1.4.10 Special Qualifications: The Contractor shall, without additional expense to the Government, be responsible for obtaining any and all necessary licenses, permits, and letters of certification. All current federal, state, and county rules and regulations shall be met and maintained throughout the performance of the work specified under this contract.

1.4.11 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with Subpart 42.5 of the Federal Acquisition Regulation. The KO or COR, as designated, may periodically meet with the Contractor to review the Contractor's performance. At these meetings the KO or COR will apprise the Contractor of how the Government views the Contractor's performance and the Contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

1.4.12 Contracting Officer Representative (COR): The COR will be identified by separate letter. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform specific functions as authorized by the KO. These functions may include but, are not limited to: ensuring the Contractor performs the technical requirements of the contract, perform inspections necessary in connection with contract performance, maintain written and oral communications with the Contractor concerning technical aspects of the contract, issue written interpretations of technical requirements including Government drawings, designs, specifications. The COR will also monitor Contractor's performance and notify both the KO and Contractor of any deficiencies, coordinate availability of Government furnished property, and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates, or changes in delivery dates. The COR is not authorized to change any of the terms, conditions, or price of the contract or signed Task Order.

1.4.13 Contractor Key Personnel: The following personnel are considered key personnel by the Government: The Contractor, Contractor's Superintendent/Manager, and Quality Control Inspectors. The Contractor shall provide a Contract Manager who shall be responsible for the performance of the work. The name of this person and an alternate who shall act for the Contractor when the manager is absent shall be designated in writing to the KO or COR. The Contract Manager or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract.

1.4.14 Contractor Travel: Any travel requirement associated with this contract is at the Contractor's own expense and shall be at no additional cost to the Government.

1.4.15 Data Rights: Not applicable under this contract.

1.5. GOVERNMENT FURNISHED ITEMS AND SERVICES:

1.5.1 Facilities: The Government may provide temporary storage areas for the Contractor's non-hazardous equipment during the period of performance of individual Task Orders. The Contractor's equipment will be stored in the specified areas as designated by the COR and not left out in public recreational areas after duty hours, unless prior coordination and approval has been given by the COR. Upon completion of each Task Order the Contractor will promptly remove all equipment from these areas. The Government shall provide a designated area for placement of

all debris as a result of tree removal, limb trimming, stump grinding and other organic materials during the execution of this contract. All debris will be free of trash and other non-organic debris resulting from the Contractor's operations or work area clean-up.

1.5.2 Equipment: No Government owned equipment will be made available for use by the Contractor.

1.5.3 Materials:

1.5.3.1 The Government may provide access to water, where available near recreational areas, etc. Areas such as, boundary fence lines, embankments, or levees may have no immediate availability of water; in these cases the Contractor shall be responsible for obtaining all necessary supplies as required by section 1.6.3, "Materials".

1.5.3.2 The Government may provide the required forms for preparation of Activity Hazard Analysis and safety inspections.

1.6 CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

1.6.1 General: The Contractor shall furnish all supplies, equipment, to include specialized safety equipment, facilities, services, training, certifications, licenses, and management required to perform work under this PWS.

1.6.2 Equipment: The Contractor shall provide all equipment necessary to accomplish the services required by this PWS including but, not limited to: lift trucks, dump trucks, stump grinders, trailers, tarps, tie down devices, ropes, harness gear, scaffolds, ladders, augers, welders, hand saws, pole, power or chain saws, lopping shears, all-terrain vehicles and equipment necessary for removal of trees, elevated limbs, small brushy trees or vegetation described in this requirements of the PWS. The Contractor shall be responsible for providing and ensuring the proper use of all Personal Protective Equipment (PPE) required by OSHA regulations, and EM 385-1-1. All equipment must be inspected and approved by the COR or his representative prior to use. This inspection will ensure strict safety compliance IAW EM 385-1-1.

1.6.3 Materials: The Contractor shall provide all materials including, but not limited to: saw blades, fuel, oil, pruning paint or treatments, routine or emergency spill clean-up materials or neutralizers required to safely perform all services required by this PWS and to meet any requirements of Texas Commission on Environmental Quality (TCEQ) or EPA guidelines. Any supplies or handling of such supplies deemed as unsafe by the COR will be replaced by the Contractor with a suitable product at no additional cost to the Government.

1.7 CONTRACTOR MANAGEMENT REPORTING (CMR): Not applicable under this contract.

1.8 APPLICABLE PUBLICATIONS (CURRENT EDITIONS). The Contractor must abide by all applicable regulations, publications, manuals, State, local, and TCEQ regulations, policies, and procedures. Regarding safety and health standards, the Contractor shall follow the guidelines of OSHA and the **Engineer Manual (EM) 385-1-1, entitled "Safety and Health Requirements Manual"**.

1.9 Attachment/Technical Exhibit List:

1.9.1 Attachment 1/Technical Exhibit 1 – Performance Requirements Summary.

1.9.2 Attachment 2/Technical Exhibit 2 – Deliverables Schedule.

TECHNICAL EXHIBIT 1

Performance Requirements Summary

The Contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success. All services will be ordered through the issuance of Task Orders per paragraph 1.4.6.

Performance Objective	Standard	Performance Threshold	Method of Surveillance
PRS #1. <u>Tree pruning and removal of hazardous or dead limbs.</u> Contractor shall accomplish all pruning and dead wood removal by use of a toothed saw, either chain, circular, or bar and may be motorized or hand powered. No chopping tools will be used during the pruning process. All material shall be disposed of in an approved site on Government property, either within that park or in an area no further than two miles from the park where the tree was Felled, in an approved area on Government property as determined by the COR.	Tree pruning and limb removal shall result in the removal of all undesirable limbs or branches as designated by the Task Order documents. Limbs will be pruned just outside the branch collar to which the dead limb is attached with the final cut being no further than 1.5 inches from the trunk. All cuts made during this operation shall use proper arborist techniques and shall not cause shattering or tearing of the remaining limb, tree structure or bark and leaving a clean cut. All tools shall be properly disinfected prior to moving to other trees, using household bleach and disinfectants, as approved by the COR. All branches, limbs, pieces or foliage must be immediately cleared from roadways, camping sites, and mowing areas.	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.
PRS # 2. <u>Tree Removal, less than eight (8) inches.</u> Contractor shall remove designated dead/hazardous trees in accordance with industry standards and shall dispose of all debris, in an approved area on Government property as determined by the COR.	Tree removal shall result in the entire removal of the designated tree with the remaining stump flush with or below the natural ground level or grade. All foliage, limbs, tree pieces, or trunk sections must be immediately cleared from roadways, camping sites, and mowing areas of the recreational area. In cases where a tree can be felled into an undeveloped or non-mowing area, such as away from a roadway or power-line, the tree portion in the undeveloped or non-mowing area may be left in place and will not need to be sectioned and disposed of, at the discretion of the COR.	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.

PRS # 3. <u>Tree Removal, eight (8) to 15 inches.</u> Contractor shall remove designated dead/hazardous trees in accordance with industry standards and shall dispose of all debris, in an approved area on Government property as determined by the COR.	Tree removal shall result in the entire removal of the designated tree with the remaining stump flush with or below the natural ground level or grade. All foliage, limbs, tree pieces, or trunk sections must be immediately cleared from roadways, camping sites, and mowing areas of the recreational area. In cases where a tree can be felled into an undeveloped or non-mowing area, such as away from a roadway or power-line, the tree portion in the undeveloped or non-mowing area may be left in place and will not need to be sectioned and disposed of, at the discretion of the COR.	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.
PRS # 4. <u>Tree Removal, 16 to 24 inches.</u> Contractor shall remove designated dead/hazardous trees in accordance with industry standards and shall dispose of all debris, in an approved area on Government property as determined by the COR.	Tree removal shall result in the entire removal of the designated tree with the remaining stump flush with or below the natural ground level or grade. All foliage, limbs, tree pieces, or trunk sections must be immediately cleared from roadways, camping sites, and mowing areas of the recreational area. In cases where a tree can be felled into an undeveloped or non-mowing area, such as away from a roadway or power-line, the tree portion in the undeveloped or non-mowing area may be left in place and will not need to be sectioned and disposed of, at the discretion of the COR.	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.
PRS #5. <u>Tree Removal greater than 24 inches.</u> Contractor shall remove designated dead/hazardous trees in accordance with industry standards and shall dispose of all debris, in an approved area on Government property as determined by the COR.	Tree removal shall result in the entire removal of the designated tree with the remaining stump flush with or below the natural ground level or grade. All foliage, limbs, tree pieces, or trunk sections must be immediately cleared from roadways, camping sites, and mowing areas of the recreational area. In cases where a tree can be felled into an undeveloped or non-mowing area, such as away from a roadway or power-line, the tree portion in the undeveloped or non-mowing area may be left in place and will not need to be sectioned and disposed of, at the discretion of the COR or Quality Assurance Representative (QAR).	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.

PRS # 6. <u>Tree Removal, less than eight (8) inches on sloped riprap.</u> Contractor shall remove designated dead/hazardous trees in accordance with industry standards and shall dispose of all debris, in an approved area on Government property as determined by the COR.	Tree removal shall result in the entire removal of the designated tree flush with or below grade of the riprap. All foliage, limbs, tree pieces, or trunk sections must be immediately cleared from the riprap and disposed of in an approved area on Government property as determined by the COR.	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.
PRS #7. <u>Tree removal, required to be “pieced down”. Bid price will be in addition to tree removal price.</u> Contractor shall remove designated dead/hazardous trees in accordance with industry standards and shall dispose of all debris, in an approved area on Government property as determined by the COR.	Tree removal shall prevent damage to surrounding facilities and result in the entire removal of the designated tree with the remaining stump flush with or below the natural ground level or grade. All foliage, limbs, tree pieces, or trunk sections must be immediately cleared from roadways, camping sites, and mowing areas of the recreational area.	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.

PRS # 8. <u>Boundary line clearing or shredding.</u> Contractor shall clear the designated area, starting at the Government property line and extending 10' onto Government property. Note: The Government property lines are marked by official Government Monuments. These monuments will be located and marked with stakes, flagging, or paint by a Government representative. The Contractor shall be responsible for locating the boundary line between these monuments. In any case where line of site cannot be obtained, standard surveying techniques can be used. In the event of a boundary line dispute, the Contractor will notify the COR and should prepare to be asked to move work to another location along the boundary line, until any uncertainties in the affected area have been resolved.	Tree/ brush removal shall be mulched and result in a condition allowing for the safe operation of vehicles and inspection of the designated boundary line at the time work is performed. The Contractor will be allowed to work at one foot off of the fence line to avoid damaging the existing fencing. Any remaining tree stumps should be flush or down to six (6) inches below natural ground level or grade and allow for normal vehicle operations. Contractor will ensure that all mulched materials along the 10' wide clearance (as measured from the boundary line) are generally spread evenly across the path. No piles, windrows or burning shall be allowed. End result is no mulched vegetation larger than 3" diameter. If encountered, old abandoned fence lines shall be cleared from the 10' boundary line and disposed-of off Government property. No heavy equipment shall be used to plow, push, or otherwise disturb the natural terrain. The Contractor will notify the COR when dozer type equipment is to be used. Extreme caution shall be exercised when operating this type equipment where the boundary line is adjacent to a home site, developed lot, or is controversial. The cutting of various oaks (bur oak, Shumard oak, Chinkapin oak, post oak, and blackjack oak), pecan, American elm, and other USACE-designated vegetation larger than six (6) inches will be avoided but, branches will be trimmed to ten (10) feet. Damage to trees and shrubs located on private property must be avoided and given special consideration. This overhanging vegetation may be tied or held back rather than trimmed. If required, in these areas, notification may be made to the COR and a determination will be made upon contact with the adjacent private property owner. Access over adjacent private property lands, if required or desired, will be the responsibility of the Contractor. Any contact, controversy, or agreements with adjacent landowners must be reported, in writing, to the COR within two calendar days. Said written notification shall be separate from the Contractor's daily or quality control reports.	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.
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PRS # 9. <u>Area clearing or shredding.</u> Contractor shall clear the designated area by mechanical means. Note: The Government property lines are marked by official Government Monuments. If clearing is near the Government property line, these monuments will be located and marked with stakes, flagging, or paint by a Government representative. The Contractor shall be responsible for locating the boundary line between these monuments. In any case where line of site cannot be obtained, standard surveying techniques can be used. In the event of a boundary line dispute, the Contractor will notify the COR and should prepare to be asked to move work to another location until any uncertainties in the affected area have been resolved.	Tree and brush removal shall be mulched and result in a condition allowing for the safe operation of vehicles and inspection of the designated area at the time work is performed. Any remaining tree stumps should be flush or down to six (6) inches below natural ground level or grade and allow for normal vehicle operations. Contractor will ensure that all mulched materials within the designated area are generally spread evenly across the area. No piles, windrows or burning shall be allowed. End result is no mulched vegetation larger than 3" diameter. If encountered, old, abandoned fence lines shall be cleared from the area and disposed-of off Government property. No heavy equipment shall be used to plow, push or otherwise disturb the natural terrain. The Contractor will notify the COR when dozer type equipment is to be used. Extreme caution shall be exercised when operating this type of equipment where the boundary line is adjacent to a home site, developed lot, or is controversial. The cutting of various oaks (bur oak, Shumard oak, Chinkapin oak, post oak, and blackjack oak), pecan, American elm, and other USACE-designated vegetation larger than six (6) inches will be avoided but, branches will be trimmed to ten (10) feet. Damage to trees and shrubs located on private property must be avoided and given special consideration. This overhanging vegetation may be tied or held back rather than trimmed. If required, in these areas, notification may be made to the COR and a determination will be made upon contact with the adjacent private property owner. Access over adjacent private property lands, if required or desired, will be the responsibility of the Contractor. Any contact, controversy, or agreements with adjacent landowners must be reported, in writing, to the COR within two calendar days. Said written notification shall be separate from the Contractor's daily or quality control reports.	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.
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PRS #10. <u>Stump removal through means of grinding.</u> Contractor shall remove designated stumps by means of grinding. Extreme caution shall be used when removing stumps through this method and safety precautions shall be included in the Contractor's Safety Plan (reference - 1.4.9 "Safety") and will be observed during all operations. Stumps will be marked or identified by Government personnel as needed. The three size classes of stumps to be ground are: less than 24 inches, 24 inches-36 inches, and greater than 36 inches. All measurements will be made at ground level at the widest portion of the root flare. Generally, stumps will be the bi-product of dead or hazardous trees removed under this contract. However, when such trees are occasionally removed by Project Office personnel, those stumps will be approximately 12" in height.	Stumps shall be removed to a minimum of five (5") inches below ground level. Each resulting depression will be backfilled with the resulting stump material and smoothed. All other stump materials must be immediately removed from nearby road and/or campsite pad surfaces. All debris, trash, or other material resulting from the Contractor's operation shall be removed from the area, and the job site shall be restored or cleaned to as near a natural condition as possible, upon completion of the job.	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.
PRS # 11. <u>Stump and root removal through means of grubbing.</u> Contractor shall remove tree stumps by means of grubbing. The three size classes of stumps to be removed are: less than 12 inches, 12 inches-20 inches, and greater than 20 inches. The Contractor shall dispose of all debris, in an approved area on Government property as determined by the COR. This method is primarily intended when near flood control structures where soil disturbance must be repaired.	Removal of the entire stump, trunk, and all roots greater than one-half inch. Upon the complete removal of all components, any voids shall be filled and compacted in six inches lifts. Any voids less than six inches shall be compacted at the surface. All compacted areas shall result in a finished surface even with the natural grade and without notable depressions. All debris, trash, or other material resulting from the Contractor's operation shall be removed from the area, and the job site shall be restored or cleaned to as near a natural condition as possible, upon completion of the job. All material will be disposed of in an approved site on Government property, either within the adjacent area or in an area no further than two miles from the location where the stump and materials were removed as determined by the COR.	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.

PRS #12. Re-seeding. The Contractor shall plant native grass seeds in cleared or disturbed areas. This will generally be ordered in conjunction with boundary line and area clearing tasks.	Contractor shall loosen the top 1" of soil or use a "no-till" seeder and reseed with Buffalograss and Blue Grama. If possible, the ground disturbance should be perpendicular to the slope to reduce erosion. The Contractor shall provide state certification of the latest season's crop delivered in sealed packages, bearing the producer's guaranteed analysis for percentages of mixtures, purity, germination, weed and seed content, and inert material. Label in conformance with AMS Seed Act and applicable state seed laws. Government representative must inspect seed prior to dispersal. Wet, moldy, or otherwise damaged seed will be rejected. Seed mix shall be an 80/20 blend of Buffalograss (<i>Bouteloua dactyloides</i>) and Blue Grama (<i>Bouteloua gracilis</i>) respectively. Seed rate shall be 50# per acre.	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.
PRS #13. Boundary Maintenance. The Contractor shall use a brush-hog or other machinery in areas that were previously cleared within the past five to ten years on past contractual actions to remove woody vegetation. This new action will remove the new woody vegetation that is returning to the 10' wide area that was previously treated to maintain the boundary area.	Contractor shall use machinery to shred and mulch the 10' wide previously cleared area along the boundary to keep the boundary clear of new additional woody vegetation that is returning to the area, mulched and result in a condition allowing for the safe operation of vehicles and inspection of the designated boundary line at the time work is performed. Any remaining tree stumps should be flush with the natural ground level or grade to allow for normal vehicle operations. Contractor will ensure that all mulched materials along the 10' wide clearance (as measured from the boundary line) are generally spread evenly across the path. No piles, windrows or burning shall be allowed. End result is no mulched vegetation larger than 3" diameter. No heavy equipment shall be used to plow, push, or otherwise disturb the natural terrain.	100% completion of the work as designated on the issued Task Order. Full payment will only be made after minimum results have been achieved.	The 100% inspection method will be used to monitor all contract services. Inspections will be performed by the COR or his designated Quality Assurance Representative.

TECHNICAL EXHIBIT 2

DELIVERABLES SCHEDULE

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
Item a. Pre-work Conference. The Contractor shall attend a pre-work conference with the COR and Government personnel ten (10) calendar days prior to initiation of any work under this contract and, if required, meetings to discuss safety or hazardous activities. The Contractor shall be required to attend any performance standards meeting within two (2) calendar days of any Contractor Deficiency Report (CDR) initiated by the COR. Refer to PWS paragraph 1.4.11.	Contractor shall be required to attend a meeting prior to commencement of initial work or at any time the KO or COR determines performance does not meet the minimum standards of this contract, or issues concerning safety are present.	Submission of a response is required to satisfy all sign in logs or identify corrective actions to prevent the reoccurrence of substandard performance results, or Contractor Deficiency Reports have been issued. For CDR responses, the Contractor will return one copy of this completed form to be reviewed and subject to acceptance by the KO or COR.	The Contractor shall submit responses by hard copy or email format to resolve deficiencies or provide corrective action plans. The Government may provide forms for CDR responses as determined by the COR.	Initial Submission shall be made to the Lewisville Project Office, Attn: COR, 1801 North Mill Street, Lewisville, Texas 75057; or as specified in the solicitation instructions.
Item b. List of Employees and Sub-contractors. The Contractor shall submit any specialized qualification licenses or equipment pertaining to unique aspects of work performed under this contract, i.e. certifications for working near electrical power lines, etc. submitted to the KO or COR for approval. Any change or variation from an approved employee or sub-contractor list must be reported and approved, prior to any change taking effect. Refer to PWS paragraph 1.4.10.	Contractor shall submit employee and sub-contractor list within fifteen calendar days (15) from contract award, for review and approval by the Government. Once approved, any changes must be submitted for approval by the COR.	One copy required and subject to review and approval by the KO or COR.	The Contractor shall submit responses by hard copy or email format to resolve deficiencies or provide corrective action plans. The Government may provide forms for CDR responses as determined by the COR.	Initial Submission shall be made to the Lewisville Project Office, Attn: COR, 1801 North Mill Street, Lewisville, Texas 75057; or as specified in the solicitation instructions.
Item c. Safety Plan. The Contractor shall submit a detailed Safety Plan for review and approval by	Contractor shall submit a Safety Plan and initial AHA within fifteen	One copy required and subject to review and approval by the KO or COR.	The Contractor shall submit responses by hard copy or email format to resolve	Initial Submission shall be made to the Lewisville Project Office, Attn: COR,

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the KO OR COR. This plan shall describe the Contractor's method to ensure safe operations, emergency accident prevention and response, the nearest emergency medical treatment facility for intended use. Activity Hazard Analysis (AHA), Material Safety Data Sheets (MSDS) and Personal Protective Equipment needs and uses shall be included in this plan. Refer to PWS paragraph 1.4.9.	calendar days (15) from contract award, for review and approval by the Government. Once approved, any proposed changes must be submitted for approval by the COR before such changes may be instituted. All plans and analysis shall be prepared in accordance with OSHA and the U.S. Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1, latest edition.		deficiencies or provide corrective action plans. The Government may provide forms for CDR responses as determined by the COR.	1801 North Mill Street, Lewisville, Texas 75057; or as specified in the solicitation instructions.
Item d. Quality Control Plan. Contractor shall submit a detailed Quality Control Plan for review and approval by the COR. This plan shall describe the Contractor's method to ensure quality performance to meet the minimum standards required by the Performance Work Statement and the Performance Requirements Summary. Refer to PWS paragraph 1.4.1.	One copy required and subject to review and approval by the COR within 30 calendar days of award. The Contractor shall be required to submit in writing any proposed changes to a previously approved plan for review and approval of the COR.	One copy required and subject to review and approval by the KO or COR.	The Contractor shall submit responses by hard copy or email format to resolve deficiencies or provide corrective action plans. The Government may provide forms for CDR responses as determined by the COR.	Initial Submission shall be made to the Lewisville Project Office, Attn: COR, 1801 North Mill Street, Lewisville, Texas 75057; or as specified in the solicitation instructions.
Item e. Equipment Safety Inspection. Contractor shall be required to inspect all equipment to be used and submit SWF 1192-J, Miscellaneous Equipment Safety Inspection. At the time of this submission shall be required to coordinate with the COR and present all equipment to	All equipment shall be inspected at the start of each Task Order or anytime such equipment has been removed from Government property and used at another location. This completed form will accompany each request for the required	One copy of the completed equipment inspection form shall be required and subject to review and acceptance by the KO or COR.	The Contractor shall submit responses by hard copy or email format to resolve deficiencies or provide corrective action plans. The Government may provide forms for CDR responses as determined by the COR.	Initial Submission shall be made to the Lewisville Project Office, Attn: COR, 1801 North Mill Street, Lewisville, Texas 75057; or as specified in the solicitation instructions.

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be used for a safety inspection. The purpose of this inspection shall be to ensure compliance with EM 385-1-1 and OSHA standards. Refer to PWS paragraph 1.6.2.	Government inspection of equipment and should be submitted not later than 24 hours before the initiation of work for each Task Order. Exception: Equipment removed for security purposes, such as chain saws or smaller equipment may be excluded from inspection upon return but may be subject to in progress safety inspections.			

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Item f. Invoicing. Contractor shall submit a complete and accurate invoice upon completion of work under individual Task Orders. The Contractor may submit a request for partial payment upon completion of all CLINs at each individual lake, when Task Orders include multiple lakes. Invoices shall include the contract and Task Order number, the Contractor's name, address and contact information as registered under the System for Acquisition Management (SAM) and a list of completed CLINs. Prices shall be derived from the contract bid schedule for the appropriate Base or Option Year pricing. Refer to PWS paragraphs 1.3 and 1.4.6.	One copy, subject to verification, review and acceptance by the COR upon completion of work at individual lakes or full Task Order completion. Resubmission may be required as needed if corrections are required.	One copy required and subject to review and approval by the KO or COR.	The Contractor shall submit responses by hard copy or email format to resolve deficiencies or provide corrective action plans. The Government may provide forms for CDR responses as determined by the COR.	Invoice submissions shall be made to the COR. Attn: ENS BLM, 1801 North Mill Street, Lewisville, Texas 75057